



TEXAS SOUTHERN UNIVERSITY
THURGOOD MARSHALL SCHOOL *of* LAW

LEGAL ANALYSIS

COURSE No. 7310

FALL 2026

Section 1

COURSE GUIDELINES

&

SYLLABUS

Class Times

Mondays, Wednesdays, and Fridays

12 noon to 12:50 pm, Room 107

PROFESSOR JENIFER POINTS

TABLE OF CONTENTS

The Professor and Office Hours	3
Course Books and Materials	4
Course Description and Objectives.....	5
Student Learning Outcomes.....	6
Grading	8
Core Grammar for Lawyers	10
Accommodations and Emergencies	12
Wellness Resources	12
Course Policies and Procedures	13
Title IX Policy.....	18
Academic Calendar	19
Syllabus.....	20

THE PROFESSOR AND OFFICE HOURS

Name: Jenifer Points

Email: jenifer.points@tmslaw.tsu.edu

Office Number: 231E

Phone Number: 713.313.7276

Office Hours: Mondays and Wednesdays 1-3 pm

Other dates and times by appointment, in person or through Zoom

You are welcome to stop in my office anytime you find me there, even during non-office-hour times. I'm happy to talk to you about Legal Analysis or any other topic. Come see me!

Class Format

I use Canvas for classroom management, email, posting course materials and grades, and assignment submission. Our classes will be held synchronously, at the assigned date and time, on campus.

Note from the Professor

Welcome! I look forward to working with you this school year. My goal is for you to succeed. If you are having a hard time with the course material, please reach out to me.

Email is the best way to reach me. You can email me anytime, and I will reply to you as soon as possible. If you email a question about class material or assignments, I may need to respond to the entire class so that everyone has equal access to information. In that event, I will not reveal the identity of the student who posed the question.

COURSE BOOKS AND MATERIALS

The *required* materials for this course are:

1. Coughlin, Malmud, & Patrick, A Lawyer Writes, 4th ed. (This will also be our primary textbook for second semester.)
2. Brett A. Brosseit, et al., Applied Critical Thinking & Analysis
3. David S. Romantz & Kathleen Elliot Vinson, Legal Analysis, 4th ed.
4. Course Reader (I will provide a digital copy. If you choose, you may have the document printed at a print center. Note that it is 320 pages long.)
5. Core Grammar for Lawyers (an online grammar instructional program; see page 10 for additional details)

A recommended reference book is:

6. Garner, The Redbook: A Manual on Legal Style, 4th ed.

The required books are available at Texas Southern University's Bookstore in the Student Life Center. Some of the books are also available from other sources, such as Amazon. Make sure you check the edition number to purchase the correct book. (You may not use an old edition for required materials.) If you have not already done so, you should purchase the required books right away. We will be using some of them immediately.

Occasionally, I will provide additional course materials for you, either posted on Canvas or physically handed out during class.

COURSE DESCRIPTION AND OBJECTIVES

The primary goal of this course is to develop higher-order thinking skills crucial to the understanding and practice of law, including the skills of synthesis, analysis, and intellectual creativity. These higher-order skills will be developed using an active learning approach. The course will begin with instruction on and practice with reading critically and actively for deep comprehension. Next, students will be taught and practice methods to synthesize and assimilate written legal materials to craft sound legal rules at the general level and, even deeper, at the interpretive and definitional level. Finally, students will develop skills necessary to analyze and apply these rules to evolving factual scenarios. The course will essentially teach students how to think like a lawyer.

The focus of this course is on the *thinking* aspect of legal analysis. As the course progresses, students will begin to communicate their analysis in writing. The written product will be evaluated, but the focus of the evaluation will be on the analysis itself, not on writing skills, which will be comprehensively taught in the spring semester's Lawyering Process I course.

In general, this course will focus on following skills:

1. **Accessing higher-order mental skills.** Undergraduate study develops the first levels of Bloom's Taxonomy thinking skills, including information recall, concept explanation, and application of information to other situations. In this course, students will develop the higher skills of breaking concepts into parts to explore their relationship and dependence, justifying a predictive outcome, and generating novel solutions to the application of principles to facts. Coursework will include reading law, crafting legal rules, and applying rules to facts.
2. **Critical Reading.** Students will read case law and statutes, focused on comprehending the material and understanding how the rules were structured and, for cases, applied to the specific facts. Critical reading will be demonstrated through case briefs and assessments.
3. **Articulating Legal Rules.** Students will learn to assimilate and synthesize legal sources into a framework of legal rules. Rules will be understood to exist at different levels of generality. Students will explore the hierarchy of statutory and case law, as well as the effects of specialized legal rules that give context and establish limitations. Through individual and group exercises, students will develop the ability to structure varying rules into a framework for legal analysis.
4. **Legal Analysis.** Students will learn the skill of applying law to a set of facts, adapting the analysis as new facts are presented, and justifying the predicted outcome. These skills will build from inductive analysis to synthesized and deductive analysis. To aid this endeavor, students will become proficient in evaluating the driving forces behind rule selection (such as claim preclusion being borne from a goal of efficiency and property law developing from a goal of avoiding waste). Finally, students will practice policy-based reasoning to support predictive outcomes. Skill development assessments will include integrated set questions modeled after the NextGen Bar Exam and written legal analysis.

STUDENT LEARNING OUTCOMES

The following list provides a more detailed description of the student learning outcomes and objectives for this course. Students will continue to hone these skills in the Lawyering Process courses and in other second- and third-year courses.

1. **Understanding of the United States Legal System.** Students will be able to:
 - 1.1 Understand the federal and state court systems (with emphasis on the Texas courts) and how they relate to each other; and
 - 1.2 Understand how to distinguish between primary, secondary, mandatory, and persuasive authority.
2. **Critical Reading and Thinking.** Students will be able to:
 - 2.1 Read, understand, and evaluate cases by:
 - 2.1.1 Identifying the elements of a reported opinion—procedural facts, legally relevant facts, issue, holding, reasoning, policies, legal rules, and case disposition;
 - 2.1.2 Synthesizing a line of related opinions; and
 - 2.2 Read, understand, and evaluate statutes and regulations.
3. **Rule Development.** Students will be able to:
 - 3.1 Understand and articulate explicit rules;
 - 3.2 Identify implicit rules from the text and craft usable rule statements that effectively capture the unarticulated rule; and
 - 3.3 Synthesize the reasoning and outcomes of multiple legal sources to develop a synthesized rule that accurately accounts for past results and can predict future outcomes under new factual scenarios.
4. **Legal Analysis.** Students will be able to:
 - 4.1 Identify and articulate legal issues;
 - 4.2 Identify relevant facts, legal authority, and policy;
 - 4.3 Apply explicit rules to evolving facts;
 - 4.4 Proficiently identify and apply canons of statutory interpretation;
 - 4.5 Apply implicit rules to evolving facts;
 - 4.6 Apply synthesized rules to evolving facts;
 - 4.7 Strengthen their legal analysis through purposeful incorporation of legal theories that drive rule selection;
 - 4.8 Integrate policy-based reasoning into legal analysis; and

- 4.9 Demonstrate intellectual creativity by generating legal arguments for novel legal issues.
- 5. **Legal Writing.** The focus of this course is the process of legal thinking versus the output of legal writing. But to allow for the evaluation of students' legal analysis, students will be required to skillfully articulate the rules they have crafted and apply them to the facts in their analyses. Thus, students will be able to:
 - 5.1 Effectively state legal issues;
 - 5.2 Announce predictive outcomes;
 - 5.3 Craft multi-level rule statements that present as cohesive frameworks for analysis;
 - 5.4 Produce legal analysis involving inductive and deductive reasoning; and
 - 5.5 Engage a case file containing law and facts to produce a written legal analysis that provides a preliminary conclusion, rules, analysis, and final conclusion that accurately predicts the application of law to the given factual scenario.
 - 5.6 Write a predictive memorandum.

GRADING

General Grading Information

1. **Course Format.** Legal Analysis is a three-credit hour course. The course is comprised of readings and lectures, individual and group exercises, a predictive memorandum, and assessments.

2. **Grade Components.** Grades for this class will be based on the cumulative total of the scores received for the following:

2.1	Daily exercises and other assignments (total)	100 points
2.2	Exam 1	100 points
2.3	Midterm Exam	250 points
2.4	Predictive Memorandum	100 points
2.5	Final Exam	350 points
2.6	Core Grammar for Lawyers	50 points
2.7	Participation, Professionalism, and Attendance	<u>50 points</u>

TOTAL: 1000 points

3. **“Daily exercises and other Assignments”** include but are not limited to individual and group exercises performed in class and as homework. These assignments generally will be scored on good-faith effort and timely submission. There are 100 points allocated for this category. To the extent the course’s assignments do not use all 100 allotted points, all students will receive all remaining, unassigned points.

4. **Participation, Professionalism, and Attendance.** Class participation and attendance will be considered in determining your final course grade. “Participation, Professionalism, and Attentiveness” points (“PPA points”) **will be deducted** for the following: being unprepared for class; not actively participating in class discussions or exercises; being disrespectful to me or your classmates (for example, talking or looking at your phone when one of us is speaking); missing any scheduled or mandatory conference without providing adequate notice beforehand (at least 24 hours before the scheduled meeting except in emergency situations); failing to timely sign up for any mandatory conference as instructed; writing the wrong exam number on an anonymous assignment; excessive tardiness; and displaying immature or unprofessional conduct. Examples of “immature or unprofessional conduct” include but are not limited to: sighing out loud in class or making other inappropriate outbursts; walking in and out of class after instruction has begun (unless you have a medical problem and have received an accommodation from the Dean of Students); permitting your cell phone or other electronic device to ring during class; surfing the internet; viewing material on your laptop or smart electronic device unrelated to class; using profanity or offensive language during class; and engaging in a verbal/physical altercation in my presence. Generally, in gauging what

constitutes unprofessional behavior, consider whether your conduct would be acceptable in a court of law. If it would not be tolerated, please do not do it in the classroom.

5. Mandatory Curve. All Legal Analysis and Lawyering Process classes are required to adhere to the following mandatory curve, as reflected in the current Student Rules and Regulations.

A: 8 - 15 %

B: 25 - 40 %

C: 40 - 65 %

D/F 0 - 8 %

Please note that at least 45% of the class will receive a grade of “C” or below under this mandatory curve. As you consider a reasonable grade outcome for this class, please keep this in mind.

CORE GRAMMAR FOR LAWYERS

Core Grammar for Lawyers (CGL) is an online program of grammar and punctuation instruction and review. It is comprised of twenty-four lessons and related practice exercises. You must complete the online course—and pass the post-test—by the deadline. The program is structured to allow you to proceed at your own instructional pace. Depending on your existing skill level, each lesson takes between one-half hour and two hours to complete.

The CGL course is designed to provide formal grammar and writing review for legal writers of all levels. The course is taken by law students and practicing lawyers throughout the U.S. The writing skills learned through CGL will be crucial as you move into the spring writing course Lawyering Process I and other law school courses, and ultimately, in the practice of law. You are strongly encouraged to use this first semester of law school to further develop your writing skills before entering a legal writing course where those skills will be evaluated and graded.

The CGL online course includes three parts: (1) a diagnostic pre-test to assess your present level of competence; (2) twenty-four lessons; and (3) a post-test, to measure whether you have mastered the lessons. You must complete the post-test with a score of at least 75 to complete the CGL course. The CGL program will remain accessible for one year.

Registering for Core Grammar for Lawyers

Each student must register individually for CGL.

1. **Cost:** Registration for CGL for TMSL students is \$32.
2. **Registration:** Please carefully follow these steps:
 - 2.1. Go to <http://www.coregrammar.com/getcgl>
 - 2.2. Complete the registration form. Be sure to select “Texas” for your state, and “Texas Southern University – T. Marshall School of Law” for your school.
 - 2.3. Access Code—on the payment page, enter **TSULAW26** in the Access Code field. The Access Code provides twenty percent off the price (you will pay \$32).
 - 2.4. Payment—enter credit card information where requested, verify the purchase, and continue to create a Core Grammar for Lawyers account.
 - 2.5. **IMPORTANT—Class Code—**enter your section’s CGL Class Code. The correct CGL Class Code is required for you to get credit for completing the course. Enter the code exactly as written, including hyphens:

Section 1 CGL Code: 326-206-1020

Completing Core Grammar for Lawyers

All lessons and a post-test score of 75 or above must be completed by Sunday, November 8, 2026, at 11:59 p.m. Please enter this deadline in your calendar now. Do not wait until the last minute. Some lessons can take longer than you imagine they might. If you run out of time, you will not get credit for this assignment.

After completing the registration, it is time to start. The course content is organized into “books.” Masterly of a topic earns you another “book” for your shelf. You will begin using CGL by completing the Diagnostic Pretest. **You may not opt out of the pretest.** Satisfactory completion of one or more lessons in the pretest will earn you those “books” without having to work through those lessons individually.

After completing the pretest, you will begin individual lessons that you did not place out of. Each completed lesson earns another “book.”

After completing all lessons and earning all “books,” you will take the post-test. You must score at least **75** to pass the CGL course. It might take more than one attempt. You are strongly encouraged to leave yourself enough time to take the post-test over again if necessary. You may take the post-test an unlimited number of times to achieve the minimum score.

You must complete all twenty-four CGL lessons and **pass the post-test with a minimum score of 75 by 11:59 p.m. on Sunday, November 8, 2026. No exceptions.** I recommend completing at least three CGL lessons each week—more if possible—to stay on track. Do not try to fit them all in at the last minute as they can be time-consuming.

CGL is worth 50 points in this class, which is 5% of the grade. To earn those 50 points, you must complete the post-test with a score of at least 75 by the deadline. If you are late or score less than 75 on the post-test, you will receive zero points. **Students who complete CGL on time and score 95 points on the post-test will receive 10 points of extra credit in addition to the 50 points for completing CGL.** (Please note that the bonus is for a score of *95 points or above*. A score of 94 points will not earn any bonus points.) You may take the post-test as many times as you would like to increase your score. Any single score above 75 will earn the original 50 points, even if later scores fall shorter.

ACCOMMODATIONS AND EMERGENCIES

The TMSL administrative process for student accommodations will be carried out by the TSU Student Accessibility Services Office (SASO). SASO specializes in accommodation services and will provide services to Thurgood Law students who may need accommodations.

WELLNESS RESOURCES

Law school is hard. If you are struggling, I encourage you to seek help. If you see someone else struggling, encourage that person to reach out. We must take care of ourselves and each other.

Associate Dean Ratra works with students to resolve issues that might impact their studies. You can reach her by calling or stopping into the Dean's suite or by email at miamy.ratra@tsu.edu.

As part of your tuition, TSU's University Counseling Center (in the Student Health Center) offers confidential counseling and support, crisis intervention, grief counseling, outreach, and referral services to all enrolled students. Contact the counseling center through <http://students.tsu.edu/departments/university-counseling-center/> or by calling 713.313.7804 during business hours (Monday-Friday, 8:00 a.m.-5:00 p.m.). For an emergency occurring after business hours, call 911. For a non-emergency crisis after business hours, call 713.313.7863.

University Counseling Center:

- 1.1 The University Counseling Center (UCC) provides convenient Health Services to all students.
- 1.2 Students may call the number above to request an appointment. If someone does not answer, please leave your T-Number, name, and a contact number.
- 1.3 Students may receive a call from a blocked or private number, please answer, as it may be your counselor trying to contact you.
- 1.4 Other resources for support outside of the UCC include:
 - 1.4.1 Crisis text line – Text Steve to 741-741.
 - 1.4.2 National Suicide Hotline – 800.273.TALK (8255).

The Texas Lawyers Assistance Program from the State Bar of Texas is also an amazing resource, not only for practicing lawyers but specifically for law students as well. TLAP offers confidential crisis counseling, referrals, and peer assistance relating to alcohol and drug abuse, mental health issues, and wellness. Contact TLAP through <https://www.tlaphelps.org> or by calling 800.343.8527 (available 24/7).

As your professor, I am available to talk. Please drop in during office hours or email.

COURSE POLICIES AND PROCEDURES

1. Class Preparation

To maximize your learning experience, you should complete the assignments in the Syllabus no later than the date the assignments are due. For instance, if under the date “Tuesday, August 18, 2026,” it says read pages 15-31 in A Lawyer Writes, you should have done this reading before class on that day. Please note that assignments are subject to change, and sufficient notice will be given in advance for any alterations to assignments.

2. Exam Numbers

You must use an exam number when submitting certain assignments for this class. You can obtain exam numbers from the Registrar’s Office. Any changes to the exam number policy or schedule will be announced in class, sent by e-mail, or posted on Canvas. You will not need an exam number to post your daily assignments unless I tell you otherwise.

3. Assignments and Assessments

3.1 **Exercises.** You will complete individual and group exercises. Some may be found in your coursebooks, distributed as worksheets, or assigned through ExamSoft. You do not need an anonymous exam number for these assignments.

3.2 **Assessments other than the Final Assessment.** In addition to the exercises, you will take exams through ExamSoft that, to an extent, will be modeled after the NextGen Exam integrated sets. You should obtain an anonymous exam number for these assessments.

3.3 **Final Assessment.** There will be a final exam at the end of the semester. This will require critical reading and analysis of a Case File with law and facts and writing a full legal analysis of the issue presented. You will need an anonymous exam number for this exam. It is imperative that you work diligently on earlier exercises and assessments so that you are ready for this final assessment, which will be worth 30% of your grade.

4. Feedback

This course involves multiple assignments and assessments. Often, the class will receive aggregated feedback, including detailed discussions of model answers and critiques of alternative approaches and legal arguments. It is important to your development of higher-level thinking skills that you engage in self-assessment based on this aggregate feedback. Metacognition is a key indicator of academic success. You must evaluate your skill development. I am available for one-on-one discussions of your work during office hours and other, agreed appointment times as well.

5. Written Product Formatting Requirements

In Microsoft Word, and even within ExamSoft, you have the ability to choose the formatting of your written product. **You will lose points for violating the formatting**

requirements detailed below. If you have any questions regarding these guidelines or the guidelines on any individual assignments, please ask.

5.1 **Microsoft Word.** Most documents should be uploaded in Word. This allows me to redline the document, color code it, and otherwise give feedback in the document itself. Occasionally, it will not matter if you upload as a PDF. We will discuss those times in class. If you are unsure – use Word.

5.2 **Type Font.** All documents must be typed in a professional font. Among others, Times New Roman and Century Schoolbook are considered professional fonts. If you submit a physical copy of your written product, it must be submitted on plain white, 8-1/2 x 11-inch paper (single-sided preferred).

5.3 **Font size.** The font size must be 14-point font, and footnotes (if any) may be no smaller than 11-point font.

5.4 **Header and Footer Font.** Headers and footers (including page numbers) must be in the proper font type and size as well.

5.5 **Margins.** Papers must have one-inch margins on both sides and at the top and bottom. This means no typing of any sort should be in the one-inch white space of the margins.

5.6 **Spacing.** Text must be double-spaced. Footnotes, block quotes, and headings must be single-spaced. This refers to the distance between the lines of text on the page. For reference, this page is single-spaced.

5.7 **Spacing Between Sentences.** Some legal writers prefer one space between sentences, and others prefer two. By spacing between sentences, I mean how many times you hit the space bar after the sentence concludes. I have found that many lawyers and judges prefer one space, as do I. But it is perfectly fine to choose to use two spaces. The only requirement is that you stay consistent. Pick one and stick with it! You will lose points for inconsistency. Note, this includes the spacing between citation sentences.

5.8 **Tabs.** Tabs, such as those used to begin a new paragraph, must be one-half inch in length.

5.9 **Page Numbers.** Each assignment must be consecutively paginated at the bottom of each page (centered).

5.10 **Remove Meta Data.** Please remove individually identifying meta data from any document you electronically turn in, so the anonymity of the grading process is preserved.

5.11 **Editing.** Print a hard copy of your assignment and check to verify compliance with these format requirements.

5.12 **Word Count and Page Limits.** At times, your written product may be limited in length. When that occurs, you will be assigned a word count limit or a page limit.

5.13 **Hard Copies.** You are required to turn in hard copies of some assignments. If a hard copy of your assignment is turned in, all pages of the assignment must be stapled together (in the upper left-hand corner).

6. Consequences for Late or Over-length Assignments

6.1 **Late Submission of Assignments.** Because failure to timely submit a legal document in real life can have detrimental, irreversible, and sometimes case-fatal consequences, it is important to learn early in your legal education the importance of submitting assignments on time. Please turn in assignments on time to avoid serious damage to your grade.

You will be required to upload most, if not all, of your assignments on Canvas. Whenever you have successfully uploaded a document to Canvas, you will receive an email confirmation from Canvas. If you do not receive this confirmation, this means that your document has not been successfully uploaded and you need to try it again. Accordingly, do not wait until the very last minute to submit an assignment online, as this could result in a late submission for the assignment. Finally, it is your responsibility to prove that you submitted an assignment on Canvas by the deadline; thus, for your own protection, you should save your Canvas confirmation emails.

In the practice of law, lateness has serious consequences. Similarly, lateness will have serious consequences in class. There will be no credit for late submissions.

6.2 **Submission of Over-Length Writing Assignments.** If your written submission exceeds the announced page or word count limit, you will receive point deductions. In addition, I will not read anything beyond the word count limit and any analysis found beyond that mark will not be credited in your grade.

6.3 **Submitting an Assignment Multiple Times.** If you submit an assignment multiple times, I will grade only the one turned in last. If the last submission is late, the assignment will be considered late.

7. Attendance

Class attendance is mandatory. I will take attendance at the beginning of each class. Per the Student Rules and Regulations, for this three-hour course, you will be permitted three absences. Please see the Student Rules and Regulations for information on grade reduction and further details on absences. The class attendance rule is strictly enforced. In addition, please review the Covid-19 accommodations policy (page 12) for further information regarding the Attendance Policy.

8. Collaboration

You may discuss some of your assignments with colleagues in your section of Legal Analysis. You are all likely to learn from each other and will benefit more from the course if you approach it in a collegial manner. Indeed, this is consistent with the real-life-practice of law, as it is not uncommon to discuss and test some ideas with colleagues. However, your final written product on all assignments, other than specifically assigned group assignments, must be your own. Moreover, **no person can review or revise your writing—this includes writing advisors, classmates, family members, lawyers, mentors, and writing labs or student resources (either on the TMSL or main campus), and every other person.** When you are writing or outlining your work, you may not discuss it directly with another person and you may

not disclose specific language you are putting in your written submission, the precise structure of your writing, or any other details of your writing. I should never see two papers that make the exact same arguments, follow an identical substructure, have substantially identical sentences, etc. You may not collaborate or share materials with students in other sections of Legal Analysis when working on any assignment.

Prohibited collaboration of any kind is a violation of school policy, and the matter will be forwarded to the Dean for appropriate action. In addition, you will receive zero points for that assignment and may receive an F in the course on this basis alone, regardless of your points on other assignments.

I will inform you when collaboration on an assignment is permitted. If I do not announce that you may discuss your assignment with your colleagues, you are to assume that collaboration with them (or anyone else for that matter) is not allowed. **Exchanging ideas with others on an assignment where collaboration is prohibited will be considered cheating and have dire consequences. If you are unclear whether collaboration is allowed on a particular assignment, please ask me.**

9. Plagiarism

Plagiarism in any form is strictly prohibited. You may not plagiarize any other written work, including, but not limited to, another student's writing, a sample, a document from a law firm, something you find on the internet, a document generated by Chat GPT or other AI composition software, or any document filed with any court. Doing so is a violation of school policy, and the matter will be forwarded to the Dean for appropriate action. In addition, you will receive zero points for that assignment and may receive an F in the course on this basis alone, regardless of your points on other assignments.

10. Use of ChatGPT or other AI Software

To successfully practice law (and pass the bar exam), you must learn how to think and write like a lawyer. You may not use ChatGPT or any other AI composition software in this course. Doing so will be treated as collaboration or plagiarism and your grade will be penalized accordingly.

When working in Microsoft Word, you may use technology embedded within the word processing program, such as a spell-checker or grammar-checker contained within Microsoft Word. You may not use any technology that generates text or writes or rewrites for you. Technology that generates text or writing is frequently referred to as "generative AI" or "large language models." It is strictly prohibited in this course. ChatGPT is probably the best-known example of this type of prohibited technology, but any technology, including Westlaw's Co-Counsel or Lexis's Protégé, that generates text or writing is prohibited. To be clear, any functionality of a program or app that writes text for you or rewrites your text is prohibited.

If you're ever uncertain as to whether something is permissible or prohibited, please ask.

11. Gun Policy

State law permits you to carry a concealed firearm on campus into areas that have not been designated as gun-free zones. Bringing a firearm into any designated gun-free zone on campus could lead to criminal charges and/or expulsion from this university. For a complete list of the gun-free areas on campus and the rules governing campus carry at this university, please visit Texas Southern University's website.

12. Online Class (if needed)

12.1 All classes will be held in person on the date and time specified in the syllabus. If our class must switch to an online forum for any reason, this online class policy will apply.

12.2 The same attendance and participation rules and expectations apply for on-campus and off-campus class sessions. The school requires me to take attendance for every class. I encourage you to have your video on during class. I must be able to verify your attendance. If you are unable to use your video, please let me know.

12.3 If you attend class off campus, you should be in a space with minimal distractions and interferences and be able to access your course materials. Silence notifications on your computer and phone. We must all do our best to maintain a professional environment.

12.4 When you join the Zoom class, turn your video camera on if you are able but mute your microphone. Turn on your microphone only when you speak in class.

12.5 Treat the online class as a professional environment. Do not join a Zoom class while engaging in other activities, such as driving a car or taking a walk.

12.6 If we meet by Zoom, you must be logged in and ready to go before class begins so that we can begin class on time.

12.7 If technical difficulties occur during class, please check your email for further instructions. Please be patient and expect technical difficulties. If you experience technical problems, please rejoin our Zoom class as soon as you are able.

12.8 If possible, use a desktop or laptop computer rather than a mobile device. The connection will be better, the video will be more stable, and using a mobile device for a Zoom class will consume an enormous amount of data.



THURGOOD MARSHALL SCHOOL OF LAW

TEXAS SOUTHERN UNIVERSITY

TITLE IX POLICY

Texas Southern University is committed to fostering a safe learning environment. As a professor, one of my responsibilities is to foster a safe learning environment in class. Federal Title IX regulations and Texas Southern University prohibit discrimination based on sex, which includes sexual harassment, sexual violence and misconduct, dating violence, domestic violence, and stalking. Because these incidents can undermine a student's academic success, the university encourages students who have experienced sexual conduct prohibited by this policy to report these incidents when they happen to the university's Title IX coordinator or University Confidential Resource so that the students can get the help they may need.

My goal is for students to be comfortable sharing information related to their life experiences in classroom discussions, in written work, and in one-to-one meetings. I will seek to keep private any information shared to the greatest extent possible. However, I also have a mandatory responsibility to notify the university's Title IX coordinator when I become aware of incidents of prohibited conduct that violate the university's Title IX policy. If a student chooses to share with me about having survived sexualized or intimate partner violence including rape, sexual assault, dating violence, domestic violence or stalking, Texas Southern University requires me to share this information with the university's Title IX coordinator.

Students may also speak confidentially to the University Counseling Center. Please feel free to visit the center's website, www.tsu.edu/ucc, for more information about their services. Also, students may speak with the university's Title IX coordinator by calling 713.313.1371 or emailing titleix@tsu.edu.



THURGOOD MARSHALL SCHOOL OF LAW

TEXAS SOUTHERN UNIVERSITY

ACADEMIC CALENDAR FALL 2026

First-Year Orientation	Monday – Friday	August 10-14, 2026
First Day of Class	Monday	August 17, 2026
Last Day to ADD/DROP	Wednesday	August 19, 2026
Census I Date	Tuesday	September 1, 2026
Non-Attendance (NAT) Reporting	Tuesday	September 1, 2026
Labor Day Holiday (No Classes)	Monday	September 7, 2026
Purge for Non-full Payment	Wednesday	September 9, 2026
Mid-Term Examinations	Monday – Friday	October 5-9, 2026
Last Day to Drop a Class or Withdraw	Friday	November 6, 2026
Last Day of Classes	Tuesday	November 24, 2026
First Year Professors' Grades due	Tuesday	November 24, 2026
Thanksgiving Holiday	Wednesday – Friday	November 25-27, 2026
Reading Period	Wednesday – Sunday	November 25-29, 2026
Final Examinations	Monday – Thursday	Nov. 30 – Dec. 10, 2026
University Commencement Ceremony	Friday	December 11, 2026

Please note that the calendar events and /or dates are subject to change.

LEGAL ANALYSIS

FALL 2026

WEEK 1 August 17, 19, 21

Topic: **Introduction to Legal Analysis; Sources & Systems of Law**

Read: A Lawyer Writes, pp. 15-31

Legal Analysis, pp. 3-19

Applied Critical Thinking & Legal Analysis (ACTLA), pp. 3-23

Course Reader, pp. 3-10; 250-64

Topic: **Jurisdiction & Case Precedent; Mandatory & Persuasive Authority;
Case Structure; Overview of Litigation Proceedings**

Read: Course Reader, pp. 36-58; 98-110

Homework assigned (due Mon., 08/24): Brief *Eilers v. Coy*, 582 F. Supp. 1093 (D. Minn. 1984) (available in the Course Reader, pp. 80-82). Read next week's assigned reading from the Course Reader before briefing *Eilers*. For more instruction on case briefing, refer to the Course Reader, pp. 13-17.

WEEK 2 August 24, 26, 28

Homework due Monday 8/24: Brief of *Eilers v. Coy*. Post on Canvas before class starts.

Topic: **Critical Reading; Case Briefing**

Read: A Lawyer Writes, pp. 33-64

Course Reader, pp. 16-18; 59-78

Topic: **Strategies for Understanding Case Language & Articulating Issues;
Under/Does/When Issue Statement Strategy; Identifying Broad &
Narrow Issues**

Read: ACTLA, pp. 27-58

Written homework assigned (due Mon., 08/31): Complete case briefs of the first three cases from the attractive nuisance memorandum assignment case pool.

WEEK 3 Aug 31, Sept 2, 4

Homework due Monday 8/31: Case briefs of the first three cases from the attractive nuisance memorandum assignment case pool Post on Canvas before class starts.

Topic: **Finding Explicit Rules; Identifying General (Broad) Rules & Interpretive/Definitional (Narrow) Rules**

Read: Legal Analysis, pp. 21-26 (stop at Implied Rules); 31-34
 A Lawyer Writes, pp. 65-78; 105-09
 ACTLA, pp. 59-67 (stop at Identifying Key Concepts)
 Course Reader, pp. 80-82 (stop at Inferences)

Topic: **Implicit Rules**

Read: A Lawyer Writes, pp. 110-14
 Legal Analysis, pp. 26-29
 ACTLA, pp. 127-33 (stop at Inductive Reasoning); pp. 152-67 [you do not have to brief the cases]
 Course Reader, pp. 82 (start at Inferences) – 89, 90-93(Exs. 8.3-8.4)

Written homework assigned (due Wed., 09/09): ACTLA, pp. 152-56— For each of the cases on pages 152-56, write out all implicit rules that you can identify based on the inferences you make from the courts' holdings (you don't have to brief the cases).

WEEK 4 Sept 9, 11 [Monday is a holiday]

Homework due Wednesday 9/9: Implicit rules from the cases in ACTLA, pp. 152-56.
Post on Canvas before class starts. Bring a printed copy to class.

Group 1 grammar presentation 9/9: _____

Group 2 grammar presentation 9/11: _____

Topic: **Implicit Rules (cont'd); Rule Synthesis & Inductive Reasoning**

Read: ACTLA, pp. 133-35 (stop at Analogical Reasoning); pp. 193-212

Legal Analysis, pp. 30-31; pp. 47 (start at Case Synthesis) – 50

Course Reader, pp. 23-34

Topic: **Rule Synthesis (cont'd); Ordering Rule Statements**

Read: Course Reader, pp. 237-40

Homework assigned (due Fri., 09/18): Prepare for Exam #1.

WEEK 5 Sept 14, 16, 18

Topic: **Rule Statements: Writing Clear, Concise, & Comprehensive Rules/Rule Explanation**

Read: A Lawyer Writes, pp. 115-18

ACTLA, pp. 67-78

Friday, Sept. 18 - EXAM #1

Multiple-choice and short-answer exam to include (1) reading short case excerpts and selecting best articulation of rule, (2) identifying if rules from text are contextual, general application, interpretive, or definitional, (3) identifying explicit and implicit rules; (4) synthesizing rules, (4) ordering rule statements to create a broad-to-narrow rule paragraph, (5) answering questions on court structure and judicial opinions, and (6) answering questions related to case briefing skills.

WEEK 6 Sept 21, 23, 25

Group 3 grammar presentation 9/21: _____

Topic: **Deductive Analysis (Rule-Based Reasoning); Introduction to CRAC/CREAC & IRAC**

Read: A Lawyer Writes, pp. 99-103
Legal Analysis, pp. 67-84
ACTLA, pp. 139-50
Course Reader, pp. 151-52; 174-85

Topic: **IRAC And Essay Exam Writing Skills**

Read: ACTLA, pp. 96-122
Course Reader, pp. 153-73

Written homework assigned (due Mon., 09/28): Complete the *Bubbles* practice exam essay. Post on Canvas by 9:00 a.m.

WEEK 7 Sept 28, 30, Oct 2

Homework due Monday 9/28: Completed *Bubbles* practice essay. Post on Canvas by 9:00 a.m.

Group 4 grammar presentation 9/28: _____

Group 5 grammar presentation 9/30: _____

Topic: **Live Drafting & Review of Practice Essay Exam**

Read: Legal Analysis, pp. 119-44

Homework assigned (due Mon., 10/12): Use the UDW case-briefing approach to brief the following attractive nuisance cases: *Lopez-Perez v. BNSF Railway Co.*, 638 P.3d 1192 (Ariz. Ct. App. 2009), *Renaud v. Black*, 561 P.2d 183 (Ariz. Ct. App. 2002), *Craig v. Bailey Bros. Realty, Inc.*, 697 S.E.2d 888 (Ga. Ct. App. 2010). Use only the cases provided on Canvas because some of the cases have been edited for educational purposes. Focus case briefs on this element of attractive nuisance: the place where the nuisance exists is one that the possessor knows or has reason to know children will likely trespass.

Topic: **Memorandum Basics; Writing a CREAC Discussion Section**

Read: Attractive Nuisance Memorandum Assignment (posted on Canvas)

A Lawyer Writes, pp. 3-9

Course Reader, pp. 282-98

Homework assigned (due Sun., 10/25): Attractive Nuisance Memorandum

WEEK 8 Midterm week

Midterm week – No class

MIDTERM: OCTOBER 7, 2026, 9 AM, IN ROOM 202

NextGen Bar Exam integrated set question format, assessing (1) reading comprehension, (2) knowledge of mandatory and persuasive authority, and (3) selection of rules from text, (4) crafting implicit rule statements left unarticulated in text, (5) rule-based reasoning, (6) application of rules to new factual scenario, and (7) crafting of succinct, readable issue statements that correctly identify legal issue presented.

WEEK 9 Oct 12, 14, 16

Group 6 grammar presentation 10/12: _____

Group 7 grammar presentation 10/14: _____

Topic: **CREAC Application Section, Including Counterargument & Rebuttal**

Read: A Lawyer Writes, pp. 155-61, 181-95

ACTLA, pp. 79-94, 169-76

Homework due 10/12: Case briefs for *Lopez-Perez*, *Craig*, and *Renaud*. Post on Canvas before class starts.

Homework assigned (due Fri., 10/16): Complete *Micki Mouse* CREAC at home.

Topic: **Review *Micki Mouse* CREAC Analysis**

Homework due Fri., 10/16: *Micki Mouse* CREAC. Post on Canvas by 9:00 a.m.

WEEK 10 Oct 19, 21, 23

Topic: **Remaining Memorandum Parts: Question Presented & Brief Answer, Statement of Facts, Conclusion**

Read: A Lawyer Writes, pp. 251-83

Topic: **Introduction to Case Citation; Editing & Polishing a Memorandum**

Read: A Lawyer Writes, pp. 141-54; 286-92 (through section b); pp. 295 (starting with section B) – 309. [The sections on case illustrations, roadmaps, and signposts (headings) do not apply to this assignment.]

Course Reader, pp. 301-22

Reminder: The memorandum is due on Sunday, October 25, 2026, by 11:59 p.m.

WEEK 11 Oct 26, 28, 30

SUNDAY, OCTOBER 25, 2026

The attractive nuisance memorandum is due on Canvas by 11:59 p.m. Use an anonymous exam number. Bring a printed copy (with only your exam number) to class on Monday.

Group 8 grammar presentation 10/28: _____

Topic: **More Rule Synthesis**

Read: TBD

Bring to class: A printed copy of your attractive nuisance memorandum

Topic: **Statutory Interpretation; Organizing a Statutory Analysis**

Read: Legal Analysis, pp. 85-99

A Lawyer Writes, pp. 215-31

Course Reader, pp. 111-31, 224-36, 243-49, 260-66

Happy Halloween



WEEK 12 Nov 2, 4, 6

Group 9 grammar presentation 11/2: _____

Group 10 grammar presentation 11/4: _____

Topic: **Analogical Reasoning**

Read: A Lawyer Writes, pp. 163-64

Legal Analysis, pp. 39-65 (*Note: pp. 47-50 is review)

Course Reader, pp. 267-69

Topic: **Analogical Reasoning (cont'd)**

Read: ACTLA, pp. 135-37

Course Reader, pp. 132-40; 94-96

People v. Barney, 742 N.Y.S.2d 451 (N.Y. App. Div. 2002) – Use your Lexis or Westlaw credentials to find this case.

WEEK 13 Nov 9, 11, 13

SUNDAY, NOVEMBER 8, 2026

Core Grammar for Lawyers is due by 11:59 p.m. You must achieve a score of 75% on the CGL post-test to receive credit.

Group 11 grammar presentation 11/11: _____

Topic: Policy-Based Reasoning

Read: ACTLA, pp. 187-88
 Legal Analysis, pp. 101-17
 A Lawyer Writes, pp. 207-14

Topic: Bases for Rules: Understanding How Courts Choose Rules to Apply

Read: Course Reader, pp. 195-213

WEEK 14 Nov 16, 18, 20

Group 12 grammar presentation 11/18: _____

Topic: **Reviewing Ways to Think About Laws & Legal Problems; Reviewing
Types of Rules & Legal Analysis**

Read: Course Reader, pp. 214-23

Topic: **Final Exam Review**

WEEK 15 Nov 23

Topic: **Final exam review**

Read: TBD

Happy Thanksgiving!



FINAL EXAM: DATE TBD

NextGen Bar Exam integrated set question format, assessing (1) synthesis of case law and statutes to create rule statements, (2) ordering of rule statements, (3) statutory analysis, (4) inductive reasoning, (5) deductive (rule-based) reasoning, (6) analogical reasoning, (7) short-answer legal application, (8) questions on court structure and mandatory & persuasive authority